

24PSCV02605 24PSCV02605

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C07%2F02%2F2026

Source SHA-256: 205a8d9c552571e55a7a6ce993db71410402e6bcfedb091762e2a47f36950afb

Case Number: 24PSCV02605 Hearing Date: July 2, 2026 Dept: H

Alcantara et al. v. Cullens, et

al., Case No.

24PSCV02605

ORDER ON EX PARTE APPLICATION TO
AMEND ANSWER TO ADD ADDITIONAL AFFIRMATIVE DEFENSES

Pending

before the Court is Defendant Scott Cullens' ex parte application to amend answer to add additional affirmative defenses. For the reasons stated herein, the Court denies the application, without calling the matter for hearing. (*Wilburn v. Oakland Hospital* (1989) 213 Cal.App.3d 1107, 1111 [decision to hear oral argument is within the discretion of the court].)

Ex parte proceedings "are designed to afford relief on an essentially emergency basis." (*Newsom v. Superior Ct.* (2020) 51 Cal.App.5th 1093, 1097.) As such, an applicant seeking ex parte relief "must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte." (Cal. Rules of Court, rule 3.1202(c).) "A trial court should deny an ex parte application absent the requisite showing." (*People ex rel. Allstate Ins. Co. v. Suh* (2019) 37 Cal. App. 5th 253, 257.) Moreover, a party "cannot create a justification for emergency relief by sitting on her rights until she creates an emergency situation." (*Davenport v. Blue Cross of California* (1997), 52 Cal. App. 4th 435, 454-55.)

Here, Defendant

has not demonstrated immediate danger or irreparable harm warranting emergency ex parte relief. Accordingly, the application is denied.

Defendant is directed to provide notice.